



U.S. Department
of Transportation
**Research and
Special Programs
Administration**

400 Seventh St., S.W.
Washington, D.C. 20590

JUL 9 2003

DOT-E 13216
(FIRST REVISION)

EXPIRATION DATE: April 30, 2005

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: General Motors Corporation and its Independent
Automotive Dealerships
Warren, MI
2. PURPOSE AND LIMITATION:
 - a. This exemption authorizes the one-way transportation in commerce of approximately 5,000 "recalled" air bag modules from auto dealerships in the United States to Autoliv's Utah facility for disposal. This exemption provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in development of this exemption only considered the hazards and risks associated with transportation in commerce.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 172.704 only for one-way shipments of recalled air bag modules from an auto dealership in the United States being returned to the manufacturer, except as specified in Paragraphs 7 and 8 of this exemption.
5. BASIS: This exemption is based on the application of Autoliv ASP, Inc., on behalf of General Motors Corporation dated March 20, 2003, submitted in accordance with § 107.105 and the public proceeding thereon.

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6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Air bag inflators, compressed gas or Air bag modules, compressed gas or Seat-belt pretensioners, compressed gas	2.2	UN3353	N/A
Air bag inflators, or Air bag modules, or Seat-belt pretensioners	9	UN3268	III

7. SAFETY CONTROL MEASURES:

- a. PACKAGING - Packaging is as prescribed in § 173.166 for air bag inflators or modules.
- b. OPERATIONAL CONTROLS - Autoliv must provide written detailed instructions on the proper packaging, preparation, and shipment of the recalled air bag modules to each dealership participating in the recall program.
- c. Autoliv will serve as the shipper by preparing and supplying the proper packaging and by certifying the shipping papers for each shipment made under this exemption.

8. SPECIAL PROVISIONS:

- a. Each person preparing an air bag module for return to Autoliv must be informed of the presence of hazardous materials and the terms of this exemption.
- b. Each person preparing an air bag module for return must receive a copy of the detailed instructions supplied by Autoliv and must prepare the air bag for transportation in accordance with the written instructions.
- c. Each person preparing an air bag module for return must be informed of any safety precautions necessary to prevent the inadvertent activation of or damage to the air bag during transportation, e.g., securing the wiring, etc.

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d. A person who is not a holder of this exemption who receives a package covered by this exemption may reoffer it for transportation provided no modification or change is made to the package or its contents and it is reoffered for transportation in conformance with this exemption and the HMR.

e. A current copy of this exemption must be maintained at each facility where the package is offered or reoffered for transportation.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle and cargo aircraft only.

10. MODAL REQUIREMENTS: A current copy of this exemption must be carried aboard each cargo vessel, aircraft or motor vehicle used to transport packages covered by this exemption. The shipper must furnish a copy of this exemption to the air carrier before or at the time the shipment is tendered.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by § 107.601 et seq., when applicable.

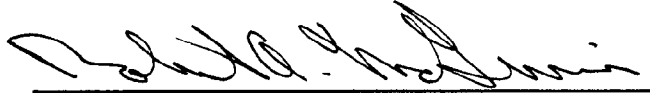
No person may use or apply this exemption, including display of its number, when this exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS:

a. The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (Sections 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incident involving the package and shipments made under the terms of this exemption.

b. Autoliv must report any instance in which the packaging is not prepared or offered for transportation as specified in the written instructions within 15 days after discovery of the discrepancy.

Issued in Washington, D.C.:



Robert A. McGuire
Associate Administrator for
Hazardous Materials Safety

JUL 9 2003
(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590. Attention: DHM-31.

Copies of this exemption may be obtained by accessing the Hazardous Materials Safety Homepage at <http://hazmat.dot.gov/exemptions> Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

PO: AM